

25STCV12824 25STCV12824

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Case Number: 25STCV12824 Hearing Date: September 16, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

EMILY WILLIAMS,

Plaintiff,

vs.

HAPPY PLACE, INC., et

al.,

Defendants.

Case

No.:

25STCV12824

Hearing Date:

September

16, 2026

Hearing Time: 2:00 p.m.

[TENTATIVE] ORDER

RE:

DEMURRERS

TO FIRST AMENDED COMPLAINT; MOTIONS TO STRIKE

Background

On May 2, 2025, plaintiff Emily Williams ("Plaintiff") filed a complaint against defendants Happy Place, Inc. ("HPI"), Fulton Management, LLC ("Fulton"), Tara Razavi ("Razavi"), Gina Naranjo ("Naranjo"), and DOES 1-25, inclusive, alleging the following causes of action: (1) Violation of CFRA Rights; (2) Disability Discrimination in Violation of the FEHA; (3) Failure to Accommodate in Violation of the FEHA; (4) Retaliation in Violation of the FEHA; (5) Failure to Prevent Discrimination and Retaliation in Violation of the FEHA; (6) Wrongful Discharge in Violation of Public Policy; (7) Constructive Discharge in Violation of Public Policy; (8) Failure to Pay Wages; (9) Failure to Provide Meal Periods and Rest Periods; (10) Waiting Time Penalties for Nonpayment of Wages; and (11) Unfair Business Practices in Violation of Business and Professions Code Section 17200 et seq.

On February 19, 2026, Plaintiff identified WEF Management, LLC ("WEF") as Doe 1.

On April 10, 2026, Plaintiff filed the operative First Amended Complaint ("FAC"), which asserts the same causes of action as the initial complaint.

On June 18, 2026, defendants HPI, Razavi, and WEF (collectively, "Entity Defendants") filed a demurrer to each cause of action in the FAC. Also, on such date, Entity Defendants filed a motion to strike portions of the FAC.

On July 14, 2026, defendant Naranjo filed a demurrer to the eighth, ninth, tenth, and eleventh causes of action in the FAC. Also, on such date, defendant Naranjo filed a motion to strike.

On September 2, 2026, Plaintiff filed

respective oppositions to the demurrers of the Entity Defendants and defendant Naranjo. Plaintiff also filed an opposition to the motion to strike of Entity Defendants on such date.

Also, on September 2, 2026, Plaintiff filed a notice of non-opposition to defendant Naranjo's motion to strike.

Further, on September 2, 2026, at the request of Plaintiff, the Court dismissed the sixth cause of action for wrongful discharge in violation of public policy and the seventh cause of action for constructive discharge in violation of public policy. (See 09/02/26 Request for Dismissal.) Plaintiff indicates that "[t]his does include the discharge claims following under other causes of action." (Id.)

On September 9, 2026, Entity Defendants and defendant Naranjo filed replies as to their respective demurrers and motions to strike.

The Court will address the parties' respective demurrers and motions to strike in this ruling.

Request for
Judicial Notice

Entity
Defendants request that the Court take judicial notice of the following documents:

1.
Complaint filed by Plaintiff with the Superior Court of California for the County of

Los
Angeles on September 19, 2024 in Emily Williams v. Happy Place, Inc., et al. (Case

No.
24STCV24339) (Ex. A.);

2.
Demurrer filed by defendant HPI in Case No. 24STCV24339 (Ex. B);

3.

Motion to Strike filed by defendant HPI in Case No. 24STCV24339 (Ex. C)

4. Declaration of Scott Greene filed in

support of the Demurrer and Motion to Strike in Case No. 24STCV24339 on
December 4, 2024 (Ex. D);

5. Request for Dismissal filed by Plaintiff in

Case No. 24STCV24339 on December 17, 2024 (Ex. E);

6. Complaint filed by Plaintiff in the instant

action on May 2, 2025 (Ex. F); and

7. Amendment to Complaint filed by Plaintiff

in the instant action on February 19, 2026 (Ex. G).

The Court GRANTS the request for judicial
notice of Entity Defendants pursuant to Evid.

Code §§ 452, 453.

Legal Standard

A party

may demur to a complaint on the grounds that it “does not state facts
sufficient to constitute a cause of action.” ((Code Civ.

Proc., § 430.10, subd. (e).) A demurrer tests whether the complaint states

a cause of action. ((Hahn v. Mirda

(2007) 147 Cal.App.4th 740, 747.) When

considering demurrers, courts accept all well pleaded facts as true. ((Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th
1068, 1078.) “The

only issue involved in a demurrer hearing is whether the complaint, as it

stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at p.

747.) The court is allowed to draw reasonable

inferences on demurrer. ((Rodas v. Spiegel (2001)

87 Cal.App.4th 513, 517.) On demurrer, a court does “not accept

contentions, deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance
Company of America (2022)

78 Cal.App.5th 889, 895.)

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) A court may “[s]trike out any irrelevant, false, or improper matter inserted in any pleading.” (Code Civ. Proc., § 436, subd. (a).) A court may “[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436, subd. (b).) §

Demurrer of
the Entity Defendants

A.
Meet
and Confer Requirement

Before filing a demurrer, the moving party must meet and confer in person, by video conference, or by telephone with the party who filed the pleading to attempt to reach an agreement that would resolve the objections to the pleading. § (Code Civ. Proc. § 430.41(a).) “Any determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Proc. § 430.41(a)(4).) §

The
Court finds that the meet and confer requirement has been satisfied. On June 3, 2026, counsel for Entity Defendants met and conferred with counsel for Plaintiff concerning the FAC. (See Declaration of Lilibet Behdadnia Filed June 18, 2026 at ¶ 11.)

B.
Plaintiff’s
Purported Lack of an Employment Relationship with Defendants HPI and WEF

Entity
Defendants assert that the FAC fails to plead an employment relationship between defendant HPI, defendant WEF, and Plaintiff. (Dem. at pp. 4-5.) Entity Defendants therefore argue that “since the FAC fails to establish an employment relationship and a joint-employer relationship, the CFRA/FEHA causes of action (1-5) and derivative UCL claim (11)” are legally insufficient. (Dem. at p.

5:16-18.)

To

the contrary, Plaintiff contends that the FAC sufficiently pleads an employment relationship. (Opp'n at pp. 2-3.)

Under

the Fair Employment and Housing Act (FEHA), an employer is defined as "any person regularly employing five or more persons, or any person acting as an agent of an employer, directly or indirectly" ((*Raines v. U.S. Healthworks Medical Group* (2023) 15 Cal.5th 268, 273 [italics in original].) "[A]n employer's business-entity agents can be held directly liable under the FEHA for employment discrimination in appropriate circumstances when the business-entity agent has at least five employees and carries out FEHA-regulated activities on behalf of an employer." (Ibid.)

A

plaintiff seeking relief under FEHA must show the existence of an employment relationship. ((*Jimenez v. U.S. Continental*

Marketing, Inc. (2019) 41

Cal.App.5th 189, 196.) An employer is defined as one "who . . . employs or exercises control over the wages, hours, or working conditions of any person" ((*Martinez v. Combs* (2010) 49 Cal.4th 35, 64 [italics in original].) "Courts in FEHA cases have emphasized the control

exercised by the employer over the employee's performance of employment duties." (*Patterson v. Domino's Pizza, LLC* (2014)

60 Cal.4th 474, 499.) Thus, an employer is one who has "a comprehensive and immediate level of 'day-to-day' authority over matters such as hiring, firing, direction, supervision, and discipline of the employee." (Ibid.)

The

FAC alleges, inter alia, that on information and belief, defendants HPI and WEF were Plaintiff's employers, including at the time of Plaintiff's wrongful termination. (FAC ¶ 11.) Plaintiff alleges that said defendants carried out FEHA-regulated activities. (Id.)

Plaintiff alleges that defendants HPI, Fulton, and WEF were "an integrated enterprise and integrated employers with interrelated operations, common management . . . [and were] the alter egos and/or the agents of each other" (FAC ¶ 13.)

Plaintiff

further alleges that she was employed by defendants HPI, Fulton, and WEF from approximately June 17, 2019, through March 7, 2023. (FAC ¶ 14.) Plaintiff was initially an Office Assistant and was later promoted to an Office Manager in or around February 2021. (Id. ¶ 15.) Plaintiff alleges that in or around late 2021, Plaintiff was granted CFRA leave for her own serious health condition. (Id. ¶ 28.) Defendants HPI, Fulton, and WEF, allegedly acting through defendant Naranjo, were angered by Plaintiff's need for protected leave and wanted her to quit. (Id. ¶ 29.) Defendant Naranjo was allegedly cold towards Plaintiff upon her return. (Id. ¶ 30.) Defendants HPI, Fulton, and WEF are alleged to have five or more employees. (Id. ¶ 37.)

In or around November 2022, Plaintiff needed time off for back surgery. (FAC ¶ 34.) Plaintiff was on medical/CFRA leave from around November 29, 2022, through February 28, 2023. (Id. ¶ 38.) On December 28, 2022, while Plaintiff was out on such leave, other employees received bonuses. (Id. ¶ 41.) Plaintiff alleges that defendants HPI, Fulton, and WEF "used Plaintiff's disability and medical/CFRA leave as a negative factor in making the decisions not to give her a bonus and other employment benefits." (Id. ¶ 44.) Plaintiff alleges that she was ultimately constructively terminated. (Id. ¶ 64.)

The Court finds that Plaintiff has sufficiently pleaded an employment relationship between defendants HPI, WEF, and Plaintiff. Plaintiff has alleged that defendants HPI and WEF each employed more than five employees. (FAC ¶ 37.) Moreover, Plaintiff has alleged that defendants HPI and WEF were Plaintiff's employers. (FAC ¶ 14.) Plaintiff has also alleged that defendants HPI and WEF were agents of each other. (Id. ¶ 13.) Plaintiff has alleged that defendants HPI and WEF did not provide Plaintiff with entitled breaks (Id. ¶ 22), did not provide Plaintiff with required meal periods (Id. ¶ 24), did not pay Plaintiff all wages owed (Id.), and that said defendants changed Plaintiff's job duties (Id. ¶ 56).

Thus, the Court finds that Plaintiff has sufficiently alleged an employment relationship between defendants HPI, WEF, and Plaintiff. The lack of an employment relationship is not a ground for sustaining the demurrer to the first through fifth and eleventh causes of action in the FAC.

C.

Basis

for Individual Liability Against Defendant Razavi

Entity

Defendants assert that the eighth, ninth, and tenth causes of action, which are alleged against defendant Razavi and others, fail because the FAC does not plead a basis for individual liability against defendant Razavi. (Dem. at pp. 5-6.)

“Any

employer or other person acting on behalf of an employer, who violates, or causes to be violated, any provision regulating minimum wages or hours and days of work . . . may be held liable as the employer for such violation.” ((Lab. Code, § 558.1, subd. (a).) For an individual to be held liable under the Labor Code, an individual must “either have been personally involved in the purported violation of one or more of the enumerated provisions; or, absent such personal involvement, had sufficient participation in the activities of the employer” (Usher v. White (2021) 64 Cal.App.5th 883, 896-897 (“Usher”).)

Defendant

Razavi is alleged to be the CEO of defendant HPI. (FAC ¶ 4.) As to the eighth, ninth, and tenth causes of action, Plaintiff alleges that defendant Razavi “violated or caused to be violated the applicable Labor Code section.” (FAC ¶¶ 142, 158, 164.) Thus, the allegations as to the individual liability of defendant Razavi as to the eighth, ninth, and tenth causes of action in the FAC are sufficient pursuant to Usher, supra, 64 Cal.App.5th 883, 896-897.

D.

Timeliness

of the FEHA and CFRA Claims Against WEF

Entity

Defendants argue that the first through fifth causes of action fail against defendant WEF because Plaintiff failed to timely exhaust administrative remedies. (Dem. at pp. 6-7.) Plaintiff argues that such claims against WEF are not time barred. (Opp'n at pp. 4-5.)

“[A]fter

an employee files a complaint and the DFEH does not issue an accusation within a specified period, the DFEH must issue a right-to-sue letter notifying the employee that he or she may bring a civil suit within one year of the date of the notice.” (*Acuna v. San Diego Gas & Electric Co.* (2013) 217 Cal.App.4th 1402, 1413.) “Section 12965’s one-year deadline from the right-to-sue notice is a condition on a substantive right rather than a procedural limitation period for commencement of an action.” (*Ibid.*) “Thus, it cause[s] the right which previously arose and on which a suit could have been maintained, to expire.” (*Ibid.* [internal quotations omitted, italics in original].)

On

September 19, 2024, Plaintiff received a Notice of Case Closure and Right to Sue letter as to defendant HPI. (RJN, Ex. A.) Such letter explicitly provides that “[t]he civil action must be filed within one year from the date of this letter.” (*Id.*) The Court recognizes that the initial complaint was filed on May 2, 2025; however, such pleading did not name defendant WEF as a defendant. Defendant WEF was not added to this action until February 19, 2026.

Attached

to the operative FAC is a Notice to Complainant which states, *inter alia*, that “[a]ttached is a copy of your [amended] complaint of discrimination” (FAC, Ex. C.) Such document is dated February 19, 2026, and names defendant WEF. (*Id.*) Relevantly, such document explicitly states as follows: “The amended complaint is deemed to have the same filing date of the original complaint. This is not a new Right to Sue letter. The original Notice of Case Closure and Right to Sue issued in this case remains the only such notice provided by the CRD.” (*Id.*)

The

Court finds that the failure of Plaintiff to name defendant WEF in the original complaint to the Civil Rights Department is fatal to the FEHA and CFRA claims against said defendant. “In order to bring a civil lawsuit under the FEHA, the defendants must have been named in the caption or body of the DFEH charge.” (*Cole v. Antelope Valley Union High School Dist.* (1996) 47 Cal.App.4th 1505, 1515 [italics added].) Here, Plaintiff did not name defendant WEF in the original complaint to the Civil Rights Department. Accordingly, Plaintiff has not sufficiently exhausted

administrative remedies. No right-to-sue letter has been issued concerning said defendant. The right-to-sue letter should have explicitly named defendant WEF to authorize a lawsuit against such entity. ((Gov. Code, § 12965, subd. (c)(1)(D).))

To the extent that Plaintiff argues that the amendment of the complaint with the Civil Rights Department restarted the one-year period to file suit against defendant WEF, the contention is unpersuasive. When a closed complaint is amended by the Civil Rights Department, “the original filing date and right-to-sue notice shall remain in effect, as shall the original statute of limitations for filing a private lawsuit.” (2 CCR § 10022, subd. (f).) When a closed complaint is later amended, the Civil Rights Department neither reopens the complaint nor determines the validity, retroactivity, or merits of the amendment. (2 CCR § 10022, subd. (e).)

Finally, the Court finds that the reliance of Plaintiff on Code Civ. Proc. § 474 is not persuasive. Such Code of Civil Procedure section concerns the amendment of complaints. The Court recognizes that Plaintiff amended the complaint in this action to name defendant WEF as a defendant. However, the issue is that Plaintiff: (1) failed to name defendant WEF in her initial administrative complaint; and (2) failed to commence suit against defendant WEF within one year of receiving the right-to-sue letter on September 19, 2024. Defendant WEF was not named as a defendant until February of 2026. The Court finds that Plaintiff’s reliance on *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243 is inapposite.

Thus, the demurrer is SUSTAINED as to the first, second, third, fourth, and fifth causes of action in the FAC as to defendant WEF.

E.
Sufficiency
of the First and Second Causes of Action

As stated above, as it concerns defendant WEF, Plaintiff has failed to exhaust administrative remedies. Accordingly, the demurrer to the first and second

causes of action is SUSTAINED on such ground. (Not. of Mot. at p. vii.)

As

to defendant HPI, Entity Defendants only identify the lack of an employer-employee relationship between defendant HPI and Plaintiff as grounds for sustaining the demurrer to the second cause of action. (See Not. of Mot. at p. vii; see also Dem. at pp. 4-5.) However, as indicated above, Plaintiff has alleged sufficient facts showing an employment relationship between Plaintiff and defendant HPI.

Therefore,

as it concerns defendant HPI, the Court finds that the first and second causes of action are sufficiently pleaded. Entity Defendants do not argue that such causes of action fail to state the required elements to allege causes of action for violation of CFRA rights and disability discrimination in violation of the FEHA, respectively.

F.

Third

Cause of Action – Failure to Accommodate in Violation of the FEHA

A

claim for failure to accommodate requires a showing that (1) plaintiff had a disability, (2) the plaintiff is qualified to perform the essential functions of the position, and (3) the employer failed to make a reasonable accommodation for plaintiff. ((Scotch v. Art Institute of California (2009) 173 Cal.App.4th 986, 1009-1010.) Generally, “[t]he employee bears the burden of giving the employer notice of the disability. [Citation.]” ((Raine v. City of Burbank (2006) 135 Cal.App.4th 1215, 1222.)

Plaintiff

alleges, inter alia, that during her employment she suffered from conditions

including,

but not limited to, degenerative disk disease. (FAC ¶ 31.) Such condition is a physical disability under FEHA because it limited major life activities such as walking and working. (Id. ¶ 32.) Defendants WEF and HPI perceived Plaintiff as disabled. (Id. ¶ 33.) Plaintiff submitted work restrictions on or around February 7, 2023,

and February 17, 2023. (Id. ¶ 46.) Such restrictions included, but were not limited to, avoiding extension and avoiding lifting over 10 pounds. (Id. ¶ 47.) Plaintiff requested a reasonable accommodation. (Id. ¶ 48.) Defendants WEF and HPI failed to provide a reasonable accommodation. (Id. ¶ 49.)

The Court finds that Plaintiff has not sufficiently pleaded the third cause of action. (FAC ¶¶ 91-98.) Plaintiff has failed to allege that she was qualified to perform the essential functions of the position. (FAC ¶¶ 10-66, 91-98.) Plaintiff is informed that causes of action arising under statutes such as FEHA “must be specifically pled.” (Fisher v. San Pedro Peninsula Hospital (1989) 214 Cal.App.3d 590, 604 [superseded by statute on other grounds in Beltran v. Hard Rock Hotel Licensing, Inc. (2023) 97 Cal.App.5th 865].)

The demurrer of Entity Defendants to the third cause of action for failure to accommodate in violation of the FEHA is SUSTAINED.

G.

Fourth

Cause of Action – Retaliation in Violation of the FEHA

“[I]n

order to establish a prima facie case of retaliation under the FEHA, a plaintiff must

show

(1) he or she engaged in a ‘protected activity,’ (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer’s action.” (Yanowitz v. L’Oreal USA Inc. (2005) 36 Cal.4th 1028, 1042 [internal citations omitted].) “[C]omplaints about personal grievances or vague or conclusory remarks that fail to put an employer on notice as to what conduct it should investigate will not suffice to establish protected conduct.” (Id. at p. 1047.) An employer is prohibited from retaliating or discriminating against a person for requesting accommodation. (Gov. Code, § 12940, subd. (m)(2).)

Pursuant to the fourth cause of

action, Plaintiff alleges, inter alia, that she asked for accommodations for her disability. (FAC ¶ 101.) Plaintiff also made a complaint under the FEHA. (Id. ¶ 102.) Plaintiff alleges that such actions constitute protected activity. (Id.

¶ 103.) Plaintiff was subjected “to various adverse employment actions . . . including, but not limited to, subjecting her to a hostile work environment, denying her a bonus . . . denying her other positions, [and] assigning her menial tasks (against restrictions)” (Id.

¶ 104.) Plaintiff alleges that she reached out to defendants Fulton, HPI, and WEF “and complained that she was ‘humiliated and put in an increasingly hostile environment.’” (Id. ¶ 61.)

The Court finds that the fourth cause of action for retaliation is insufficiently alleged. Plaintiff has not alleged the required element of retaliatory intent. ((Joaquin v. City of Los Angeles (2012) 202 Cal.App.4th 1207, 1230 [explaining that retaliatory intent is an essential element of a retaliation cause of action].) Moreover, Plaintiff has failed to allege that the actions of either defendants HPI or WEF were a substantial factor in causing her harm. (Ibid.)

The demurrer of Entity Defendants to the fourth cause of action for retaliation in violation of the FEHA in the FAC is SUSTAINED.

H.

Fifth

Cause of Action – Failure to Prevent Discrimination and Retaliation in Violation of the FEHA

Government Code section 12940(k)

provides that it is an unlawful employment practice “[f]or an employer, labor organization, employment agency, apprenticeship training program, or any training program leading to employment, to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring.” (Gov. Code, § 12940, subd. (k).) To establish this claim, a plaintiff must establish the defendant’s legal duty of care, breach of duty, legal causation, and damages to the plaintiff. (See Trujillo v. North County Transit District (1998) 63 Cal.App.4th 280, 286-287.)

The

Court has reviewed the challenged fifth cause of action. (FAC ¶¶ 109-115.) The Court finds that such cause of action is insufficiently alleged as such cause of action is conclusory. Also, Plaintiff has not alleged, inter alia, the element of duty pursuant to Trujillo, supra, 63 Cal.App.4th 280, 286-287.

The demurrer of Entity Defendants to the fifth cause of action for failure to prevent discrimination and retaliation is SUSTAINED.

I.

Sixth

Cause of Action for Wrongful Discharge in Violation of Public Policy and Seventh Cause of Action for Constructive Discharge in Violation of Public Policy

Plaintiff

dismissed the sixth and seventh causes of action in the FAC. (See 09/02/26

Request

for Dismissal.)

Thus, the demurrer of Entity

Defendants to the sixth and seventh causes of action in the FAC is MOOT as such causes of action are no longer operative.

J.

Eighth

Cause of Action – Failure to Pay Wages

To

state a cause of action for failure to pay overtime wages, a plaintiff must show that:

(1) she

was not compensated for work performed; (2) her employer knew or should have

known that she was not compensated for such work; but (3) stood idly by. (Dudley v. Brookdale Senior Living Communities, Inc. (C.D.

Cal. 2015) 2015 WL 12426082 at *5.)

The Court has reviewed the allegations related to the alleged nonpayment of wages. (FAC ¶¶ 15-25, 134-144.) As it concerns the challenged eighth cause of action, Plaintiff has not alleged that any defendant: (1) knew or should have known that she was not compensated for her work; or (2) stood idly by.

The demurrer of Entity Defendants to the eighth cause of action for failure to pay wages is therefore SUSTAINED.

K.

Ninth

Cause of Action for Failure to Provide Meal and Rest Periods and Tenth Cause of Action for Waiting Time Penalty and Nonpayment of Wages

Entity

Defendants challenge the ninth and tenth causes of action in the FAC. However,

on

opposition, Plaintiff provides no applicable legal authority to support the argument that such causes of action are legally sufficient. (Opp'n at p. 8.) Plaintiff is advised that "[c]ontentions are waived when a party fails to support them with reasoned argument and citations to authority." ((Moulton Niguel Water Dist. v. Colombo (2003) 111 Cal.App.4th 1210, 1215.)

Relevantly, as to the ninth cause of action, Plaintiff does not allege that she informed any defendant of the violations. ((David v. Queen of Valley Medical Center (2020) 51 Cal.App.5th 653, 662-663.)

Further,

the allegations are conclusory as to the ninth and tenth causes of action. Such causes of action are statutory causes of action and must be pleaded specifically. (See Fisher v. San Pedro Peninsula Hospital, supra, 214 Cal.App.3d 590, 604.)

The demurrer of Entity Defendants to the ninth and tenth causes of action in the FAC is SUSTAINED.

L.

Eleventh

Cause of Action – Unfair Business Practices in Violation of Business and Professions Code Section 17200 et seq.

To

set forth a claim for a violation of Business and Professions Code section 17200

(“UCL”),

Plaintiff must establish defendants were engaged in an “unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising” and certain specific acts. (Bus. & Prof. Code, § 17200.) A cause of action for unfair competition “is not an all-purpose substitute for a tort or contract action.” ((Cortez v. Purolator Air Filtration Products Co. (2000) 23 Cal.4th 163, 173.) “By proscribing any unlawful business practice, section 17200 borrows violations of other laws and treats them as unlawful practices that the unfair competition law makes independently actionable.” (Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone (1999) 20 Cal.4th 163, 180.)

The Court has reviewed the challenged eleventh cause of action. (FAC ¶¶ 165-169.) Given that the preceding causes of action are deficient in some form, the demurrer thereto is well taken. Also, as a statutory cause of action, the eleventh cause of action is conclusory. (FAC ¶¶ 165-169.)

The Court SUSTAINS the demurrer of Entity Defendants to the eleventh cause of action in the FAC.

M.

The

Sham Pleading Doctrine

As

a tertiary matter, Entity Defendants contend that the instant pleading is a sham

pleading.

(Dem. at pp. 7-9.) Entity Defendants take issue with Plaintiff omitting wage-and-hour

claims as well as misclassification claims from 24STCV24339. (RJN, Ex. A.)

“Generally, if a verified complaint contains allegations fatal to a cause of action, a plaintiff cannot cure the defect by simply omitting those allegations in an amended pleading without explanation.” ((JPMorgan Chase Bank, N.A. v. Ward (2019) 33 Cal.App.5th 678, 690.) “This principle is known as the sham pleading doctrine.” (Ibid.)

The Court finds that the sham pleading doctrine is not applicable to the operative pleading. Although new defendants and new claims have been asserted herein, which were not set forth in Case No. 24STCV24339, such fact does not render the FAC as a sham pleading.

N.

Leave
to Amend

The
Court does not find that there exists no reasonable possibility of successful

amendment.

((Goodman v.
Kennedy (1976) 18 Cal.3d 335, 349.)

Leave to amend will therefore be allowed.

The
Court SUSTAINS the demurrer of Entity Defendants to the first, second, third, fourth, fifth, eighth, ninth, tenth, and eleventh causes of action in the FAC with 20 days leave to amend.

The
demurrer of Entity Defendants to the sixth and seventh causes of action in the FAC is MOOT due to the dismissal of such causes of action.

Motion
to Strike of the Entity Defendants

Entity
Defendants move to strike punitive damages from paragraphs 82, 90, 98, 108, 115, 122, 133, and the prayer for relief in the FAC. Entity Defendants also

move to strike claims for declaratory relief and injunctive relief from the prayer for relief in the FAC.

Plaintiff

has not pleaded sufficient specific facts showing malice, fraud, or oppression to warrant punitive damages. (See Civil Code § 3294; see also *Clauson v. Superior Court*, (1998) 67 Cal.App.4th 1253, 1255.)

Critically,

given that the Court has sustained the demurrer to the first through fifth and eighth through eleventh causes of action as to the Entity Defendants, the motion to strike is GRANTED with 20 days leave to amend. As stated above, the sixth and seventh causes of action have been dismissed at the request of Plaintiff.

Demurrer

of Defendant Naranjo

Defendant Naranjo demurs to the eighth through eleventh causes of action in the FAC. Initially, the Court finds that the meet and confer requirement has been satisfied. (See Declaration of Lilibet Behdadnia Filed July 14, 2026 at ¶ 4.)

A.

Individual

Liability of Defendant Naranjo

As an

initial matter, defendant Naranjo contends that there is no basis for individual liability against her. (Dem. at pp. 4-6.)

Defendant

Naranjo is alleged to be the Head of Operations for defendant HPI. (FAC ¶ 5.)

As to the eighth, ninth, and tenth causes of action, Plaintiff alleges that defendant Naranjo “violated or caused to be violated the applicable Labor Code section.” (FAC ¶¶ 142, 158, 164.)

Thus,

the allegations as to the individual liability of defendant Naranjo as to the

eighth, ninth, and tenth causes of action in the FAC are sufficient pursuant to Usher, supra, 64 Cal.App.5th 883, 896-897.

B.

Legal

Sufficiency of the Eighth, Ninth, Tenth, and Eleventh Causes of Action

The

Court references its analysis as to the eighth, ninth, tenth, and eleventh causes of action as to the demurrer of Entity Defendants and incorporates such analysis herein. The same defects in pleading such causes of action applicable to Entity Defendants also apply to defendant Naranjo. Moreover, such causes of action are pleaded in a conclusory manner.

The

demurrer of defendant Naranjo to the eighth, ninth, tenth, and eleventh causes of action in the FAC is SUSTAINED with 20 days leave to amend.

C.

Sham

Pleading

Defendant

Naranjo also advances an argument that the FAC is a sham pleading. As with

the

demurrer of Entity Defendants, the Court does not find that the instant pleading is a sham pleading.

Motion to Strike of Defendant Naranjo

Defendant

Naranjo moves to strike, inter alia, punitive damages allegations, claims for declaratory relief, and certain claims for damages including emotional distress damages.

Plaintiff

does not oppose the granting of the motion to strike of defendant Naranjo. (See Plaintiff's Non-Opposition to Defendant Gina Naranjo's Motion to Strike Filed

September 2, 2026.)

Due

to the non-opposition, the motion to strike of defendant Naranjo is GRANTED without leave to amend.

Conclusion

Based

on the foregoing, the demurrer of Entity Defendants as to the first, second, third, fourth, fifth, eighth, ninth, tenth, and eleventh causes of action in the FAC is SUSTAINED with 20 days leave to amend.

The

demurrer of Entity Defendants to the sixth and seventh causes of action in the FAC is MOOT.

The

demurrer of defendant Naranjo to the eighth, ninth, tenth, and eleventh causes of action in the FAC is SUSTAINED with 20 days leave to amend.

The

motion to strike of Entity Defendants is GRANTED with 20 days' leave to amend.

The

motion to strike of defendant Naranjo is GRANTED without leave to amend.

Entity

Defendants are ordered to provide notice of this Order.

DATED: September 16, 2026 _____

Hon. Teresa

A. Beaudet

Judge,

Los Angeles Superior Court